

Freedom of Information Act 2000 (Section 51)

Environmental Information Regulations 2004 (Regulation 18)

Information notice

Date: 26 November 2025

Public Authority: London Borough of Redbridge
Address: Lynton House
255-259 High Road
Ilford
IG1 1NY

Section 51

Regulation 18 of the Environmental Information Regulations 2004 ("the Regulations") states that "the enforcement and appeals provisions" of the Freedom of Information Act 2000 ("the Act or FOIA") shall apply for the purposes of the Regulations. Therefore any reference to "this Act" in Part IV of the Act should be substituted with reference to "these Regulations". Part IV of the Act contains the enforcement and appeals provisions and includes section 50, 51 and 54 as mentioned in this Notice. All references to "the Act" should therefore be read as also referring to "the Regulations".

Under section 51 of the Freedom of Information Act 2000 (the "Act"), which is set out below, the Information Commissioner (the "Commissioner") has the power to serve a notice on a public authority requiring it to furnish him with any information he requires to enforce the requirements of the Act.

51. – (1) If the Commissioner –

(a) has received an application under section 50, ...

he may serve the authority with a notice (in this Act referred to as “an information notice”) requiring it, within such time as is specified in the notice, to furnish the Commissioner, in such form as may be so specified, with such information relating to the application, to compliance with Part I or to conformity with the code of practice as is so specified.

Application under section 50

1. The Commissioner has received an application under section 50, reference IC-383985-Y2P3 for a decision whether a request for information made by the complainant to the London Borough of Redbridge (the Council) on 11 February 2025, has been dealt with in accordance with the requirements of Part I of the Act.

Nature of complaint

2. On 11 February 2025, the complainant made the following request for information to the Council for:

“Freedom of Information (FOI) Request – Full Breakdown of Cost Floor Calculation

Under the Freedom of Information Act (FOI), the council must provide documentation detailing the full breakdown of the cost floor figure, including:

- The original purchase price
- Any refurbishment or development costs
- Other expenditures or financial records that justify the £485,000 figure.”

3. The Council responded on 11 March 2025. It referred in its letter to FOIA. It provided some information within the scope of the request (namely (1) Property Inspection Report and (2) Payment Order Form (redacted)).
4. The complainant requested an internal review on 24 March 2025. He asked the Council to reconsider whether it had provided all of the information it held which fell within the scope of his request. He also set out in detail three issues involving inconsistencies in the documents provided and a possible dual assessment and requested the Council respond about these.

5. The Council responded on 11 April refusing to conduct an internal review under FOIA on the advice of the Council's Information Governance Team but said the Home Ownership Team would respond separately to his three issues.
6. On 16 April 2025, the complainant replied reiterating his request for an internal review as he still believed there was further documentation held by the Council which fell within the scope of his original request. He also said that the Council had recently provided him with a parking site plan showing the assigned parking space for [number redacted by Commissioner] Mulberry Way but he disputed that the red marked space on the plan was legally allocated to [number redacted] Mulberry Way. He requested legal documentation (e.g., lease plan, title deed, or allocation agreement) to confirm the claim that [number redacted] Mulberry Way had a private parking space.
7. The Council provided an internal review on 30 April 2025. The review initially stated that the Council had provided the complainant with all available documentation and information relating to the property purchase, including the site plan indicating the allocated parking space. However, it then went on to revise its original position and provided copies of two more documents as follows:
 - it also held information about a 23 June 2021 approval given by the Leader of the Council, Cabinet member for Housing and the Corporate Director of Regeneration and Culture to purchase two properties on Mulberry Way (the Delegation Sheet); and
 - it held a report from the Council's legal team confirming completion of the purchase on 13 August 2021 (the completion memo)
8. In his grounds of complaint submitted to the Commissioner, the complainant explained that he does not accept that the Council has provided him with all of the relevant information in respect of his request. The fact that more documents were disclosed at the internal review stage suggests to him that the Council's searches for information falling within the scope of his original request and his extra request of 16 April for legal documentation, have not been conducted thoroughly.
9. His grounds of complaint are that he believes the Council holds more information than he has been provided with to date and that the following information, in particular, has been omitted from the disclosure provided to date:
 - (1) The original purchase price
 - (2) Any refurbishment or development costs

- (3) legal documents, such as lease plan or deed confirming the allocated parking space for [number redacted] Mulberry Way
- (4) financial records that justify the £485,000 figure such as invoices, payment records
- (5) any documents about shared title of Number [two numbers redacted] Mulberry Way or about whether the valuation/assessment may not have been conducted solely on [number redacted] Mulberry Way.
10. During his investigation, the Commissioner contacted the Council on 16 October 2025. The Commissioner set out his view that most of the requested information is likely to constitute environmental information and so the request should have been considered under the EIR. He also set out the questions he required the Council to respond to in relation to the case. The Commissioner asked for a response to his letter within 10 working days, ie by 30 October 2025.
11. Having failed to receive a response, the Commissioner contacted the Council on 5 November 2025 and asked for an update on when the Council's reply to his letter will be sent to the ICO.
12. Having failed to receive a response, the Commissioner contacted the Council again on 12 November 2025 and explained that if a substantive response was not received in relation the case by 19 November 2025 he would issue an Information Notice.
13. The Council responded to the Commissioner on 12 November 2025 and said it would respond to the Commissioner as soon as it could.
14. To date the Commissioner has not received a substantive response from the Council to his letter of 16 October 2025.

Information required

15. In view of the matters described above the Commissioner hereby gives notice that in the exercise of his powers under section 51 of the Act he requires that the Council shall, within 30 days of the date of this notice, furnish the Commissioner with a copy of the following information:
- A full and complete response to all of the questions set out in his letter of 16 October 2025 in relation to complaint IC-383985-Y2P3 and a copy of any withheld information.

Failure to comply

16. Failure to comply with the steps described above may result in the Commissioner making written certification of this fact to the High Court (or the Court of Session in Scotland) pursuant to section 54 of the Act, and may be dealt with as a contempt of court.

Right of appeal

17. There is a right of appeal against this information notice to the First-tier Tribunal (Information Rights). Information about the appeals process can be obtained from:

First-tier Tribunal (Information Rights)
General Regulatory Chamber
PO Box 11230
Leicester
LE1 8FQ

Tel: 0300 1234504

Fax: 0870 739 5836

Email: grc@Justice.gov.uk

Website: www.justice.gov.uk/tribunals/general-regulatory-chamber

18. Any Notice of Appeal should be served on the Tribunal within 28 (calendar) days of the date on which this information notice is sent. If Notice of Appeal is served late the Tribunal will not accept it unless it is of the opinion that it is just and right to do so by reason of special circumstances.

Signed by

Catherine Hey
Senior Case Officer
Information Commissioner's Office
Wycliffe House
Water Lane
Wilmslow
Cheshire
SK9 5AF